

**Court No. - 1**

**Case :-** WRIT - C No. - 28788 of 2019

**Petitioner :-** Haridwar Gupta

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Deo Prakash Singh

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Ramesh Sinha,J.**

**Hon'ble Ajit Kumar,J.**

Heard Sri D.P. Singh, learned counsel for the petitioner and Sri Anas Mahboob holding brief of Sri Mahboob Ahmad, learned counsel for respondent Nos. 2, 3 and 4.

Learned counsel for the petitioner has come up before this Court disputing the bill which is in question.

Sri Anas Mahboob holding brief of Sri Mahboob Ahmad, learned counsel appearing for the Electricity Department has raised preliminary objection that the petitioner has alternative remedy to file representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and against the order passed thereunder, the petitioner has remedy to approach Consumer Grievance Redressal Forum & Electricity Ombudsman.

In view of the above, we dispose of the writ petition with liberty to the petitioner to approach the forum and we further direct that in the event he applies for under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the disputed assessment within three weeks from today along with certified copy of this order the same shall be considered in accordance with law and shall be disposed of within a further period of six weeks.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

**Order Date :-** 13.9.2019

Shiraz